SUPPLY AGREEMENT

This Supply Agreement (the "Agreement") is entered into as of September 01, 2023 (the "Effective Date") between **Northwind Packaging Co.**, with offices at 4410 Industrial Pkwy, Tacoma, WA 98421 ("Supplier"), and **Sunbird Cafe Group**, with offices at 1820 Shattuck Ave, Berkeley, CA 94709 ("Buyer").

The parties agree as follows:

1. Term

This Agreement commences on the Effective Date and continues for twenty-four (24) months, renewing automatically for successive twelve (12) month periods unless either party gives sixty (60) days written notice of non-renewal.

2. Orders

Buyer may order Products by purchase order referencing this Agreement. Each accepted purchase order is governed exclusively by this Agreement, and any conflicting terms on Supplier's acknowledgments or invoices are rejected.

3. Pricing and Payment

Prices are as set forth in Supplier's then-current price list provided to Buyer. Supplier shall invoice upon shipment. Invoices are payable within the net terms stated on the invoice. Buyer may offset undisputed credits owed by Supplier against amounts due.

4. Delivery

Supplier shall deliver Products FOB Buyer's facility at 1820 Shattuck Ave, Berkeley, CA 94709 unless otherwise agreed. Freight charges, if any, shall be separately itemized on the invoice.

5. Warranty

Supplier warrants that Products conform to specifications and are free from defects in materials and workmanship for twelve (12) months from delivery.

6. Confidentiality

Each party shall keep the other's non-public business information confidential and use it only to perform this Agreement.

7. Duties, Tariffs and Surcharges

Supplier may add a tariff surcharge to invoices to recover customs duties actually paid by Supplier on Products sold to Buyer. Any such surcharge shall be stated as a separate line item and shall not exceed the duty actually incurred. If any duty underlying a surcharge is subsequently refunded, remitted, reduced or otherwise recovered by Supplier, whether by administrative action, protest, litigation or otherwise, Supplier shall credit Buyer the corresponding surcharge amounts within sixty (60) days of Supplier's receipt of such refund. Credits shall be issued as vendor credits applied against Buyer's open or future invoices, or at Buyer's election, by payment.

8. Limitation of Liability

Neither party is liable for indirect, incidental or consequential damages arising out of this Agreement. Supplier's aggregate liability shall not exceed amounts paid by Buyer in the twelve (12) months preceding the claim.

9. Termination

Either party may terminate this Agreement for material breach not cured within thirty (30) days of written notice.

10. Governing Law

This Agreement is governed by the laws of the State of California without regard to its conflict of laws principles.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Northwind Packaging Co.

By: _____
Name: Jordan Reyes
Title: VP, Sales

Sunbird Cafe Group

By: _____
Name: Priya Natarajan
Title: Controller